RHODA SEKAI NYAMUSAMBA
versus
MARIA AGNES NYAMUSAMBA
and
LINUS NYAMUSAMBA
and
I. NYAMUSAMBA & SONS (PRIVATE) LIMITED
and
OFFICE FOR THE REGISTRATION OF COMPANIES AND OTHER BUSINESS ENTITIES
and
CHIEF REGISTRAR OF COMPANIES AND OTHER BUSINESS ENTITIES
and
THE MASTER OF HIGH

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 10 July 2025 & 4 May 2026

Court application-*Declaratur*

Mr *K Maeresera*, for the applicant
Mr *C Ndlovu*, for the 1st and 2nd respondents

MUSITHU J:

1. The applicant Rhoda Sekai Nyamusamba approached this Court seeking relief by way of a *declaratur*. The relief sought was couched in the following terms:

> **"IT IS ORDERED THAT**
> 1. The Application be and is hereby granted.
> 2. The purported appointment of the 1st and 2nd Respondents as Directors of I. Nyamusamba & Sons (Private) Limited, the 3rd Respondent herein, be and is hereby declared null and void and is hereby set aside.
> 3. The 4th and 5th Respondents be and are hereby directed to cancel Form CR 6 issued on the 24th of March 2023 wherein the 1st and 2nd Respondents were purportedly appointed Directors of the 3rd Respondent.
> 4. The purported Special Resolution passed on the 2nd of January 2024 authorizing the 3rd Respondent to buy back one thousand seven hundred and fifty-six (1 756) shares held by Michael Gwinyai Nyamusamba, Isidore Nyamusamba, Francis Nyamusamba, Christopher Nyamusamba and Evelyn Nyamusamba and the transfer of the said shares to the capital reserve fund be and is hereby declared null and void and is hereby set aside.
> 5. For the avoidance of doubt, it is hereby declared that all actions done by the 1st and 2nd Respondents purportedly for and on behalf of or in the name of I. Nyamusamba & Sons (Private) Limited, the 3rd Respondent herein, be and are hereby declared null and void and are hereby set aside.

6. The 1st and 2nd Respondents be and are hereby barred from purporting to act for or on behalf of the 3rd Respondent or purporting to be Directors of the 3rd Respondent.
7. The 1st and 2nd Respondents shall pay costs of suit on the legal practitioner and client scale."

Background to the applicant's case and the applicant's case

2. The applicant approached the court in her capacity as the Executrix Dative of Estate Late Michael Gwinyai Nyamusamba. The gravamen of the applicant's complaint was that the purported appointment of the first and second respondents as directors of the third respondent was irregular and ought to be declared null and void. The applicant further sought the setting aside of any acts performed by the first and second respondents on behalf of the third respondent.

3. The events giving rise to the application were outlined as follows. The third respondent was duly incorporated on 20 February 1976 under Registration No. 67/76 at Salisbury in the then Rhodesia. The initial directors of the third respondent were, Isidore Nyamusamba (deceased 2 October 1983), Evelyn Nyamusamba (deceased 29 June 1988), Francis Nyamusamba (deceased 1 October 2020), Michael Gwinyai Nyamusamba (deceased 8 June 2022) and Christopher Nyamusamba, who subsequently resigned. Isidore Nyamusamba held the largest stake of 448 shares, while the others held 100 shares each. All the deceased directors passed away whilst still holding office.

4. On 20 August 1986, two additional shares were issued, one was allotted to Evelyn Nyamusamba and the other to Francis Nyamusamba, resulting in a slight adjustment to their respective shareholdings.

5. On 9 January 1987, a further nine hundred and four ordinary shares were issued. Four hundred and fifty three (453) shares were allotted to Michael Gwinyai Nyamusamba and four hundred and fifty one (451) shares to Evelyn Nyamusamba. This allotment altered the shareholding structure. The total issued ordinary shares were one thousand seven hundred and fifty-six (1756), with Michael Gwinyai Nyamusamba emerging as the majority shareholder with five hundred and fifty three (553) shares. The second respondent was once appointed as a director in 1987 and resigned in 2003.

6. Against this historical backdrop, the applicant averred that as the surviving spouse of the late Michael Gwinyai Nyamusamba and as the executrix dative of the third respondent's major shareholder she had a substantial interest in the present matter.

7. According to the applicant, sometime in January 2023, the first and second respondents purported to appoint themselves as directors of the third respondent. In January 2024

they purported to represent the third respondent by passing and lodging with the fourth respondent a special resolution authorising a share buyback of all the one thousand seven hundred and fifty-six (1756) ordinary shares. The applicant averred that the first and second respondents, who had never been and were not shareholders of the third respondent, also purported to represent the third and attempted to deal with Stand 878 Vengere Township, Rusape, a property which belonged to the third respondent.

8. The applicant further averred that the first and second respondents were not appointed by the shareholders of the third respondent in terms of its Memorandum and Articles of Association, nor in accordance with the company laws of the country. Their purported appointment as directors was therefore unlawful, null and void. The applicant accordingly prayed that such appointment be declared invalid and that the fourth and fifth respondents be directed to cancel the CR 6 issued on 24 March 2023.

9. The applicant submitted that since the appointment of the first and second respondents was unlawful, all actions undertaken by them purportedly on behalf of the third respondent were also invalid, and the third respondent should not be bound by those actions.

The First and Second Respondents' Case

10. The application was opposed by the first and second respondents. The first respondent filed the main opposing affidavit. The second respondent filed a supporting affidavit in which he associated himself with the deposition made by the first respondent. For convenience any reference to respondents hereunder shall mean the first and second respondents.

11. The respondents raised several points *in limine* in their opposing affidavit. The first point was concerned with the applicant's authority. The respondents averred that the applicant was not a representative of the third respondent and had not been granted authority to represent the company. The affairs of a private limited company could only be managed by a person duly authorised to do so. The applicant did not have the consent of the other shareholders or directors to represent the company or to institute proceedings on its behalf.

12. The respondents also submitted that the applicant had premised her claim on the derivative action principle. She had failed to demonstrate the requirements of such an action by showing that the third respondent was prevented from instituting proceedings by any of the respondents or wrongdoers in control of the third respondent. No attempt

was made to allege and prove that the first and second respondents had refused to institute any proceedings to remedy their wrong or correct their transgressions.

13. The second preliminary point related to the non-joinder of the deceased shareholders. The respondents contended that all the other four founding shareholders had not been cited and that the applicant ought to have cited the respective estates or executors. The deceased shareholders were Isidore Nyamusamba, Evelyn Nyamusamba, Francis Nyamusamba and Michael Gwinyai Nyamusamba. Only Christopher Nyamusamba was alive. Their omission was fatal to the present matter given their substantial interest in the dispute.

14. The third point was concerned with the applicant's draft order. The respondents averred that the order sought was neither clear nor concise. There was a mismatch between the application and the order sought as set out in the draft order. The draft order failed to reflect any consequential relief as claimed by the applicant.

15. The fourth preliminary point was that the application was a review disguised as a *declaratur* in that the applicant sought the setting aside of the transfer of shares and the executive appointments made by the respondents.

16. The fifth preliminary point was that there existed material disputes of fact that were unresolvable on the papers. The issues relating to the estates of the previous shareholders and whether the first and second respondents complied with the respective legislation and Articles of Association required oral evidence and the testing of that evidence through cross examination. The first respondent prayed for the dismissal of the application with costs based on the preliminary points alone.

17. On the merits, the respondents reiterated that there was a fatal non-joinder of the other individuals who had a substantial interest in the matter. In particular, the omission of the estate or executors of the estate late Isidore Nyamusamba, the late Evelyn Namusamba and the late Francis Nyamusamba was fatal to the current proceedings. It was further reiterated that the application was a review disguised as a *declaratur* and therefore incompetent at law. The draft order was not properly couched in a precise and concise manner. The applicant has also failed to attach the original share certificate.

18. The respondents alleged that the late Michael Gwinyai Nyamusamba had acted fraudulently by unilaterally allocating himself the majority shares in the company without complying with the Articles of Association and the then Companies Act. At the material time, the late Michael Gwinyai Nyamusamba was aware of the passing on of

Isidore Nyamusamba and the fact that no executor had been appointed to deal with his estate and by extension his shares. There was no resolution that was attached or that was before the Registrar of Companies to demonstrate how the majority shareholding had been allocated to him.

19. The respondents also averred that the applicant, in her capacity as the executrix dative of her late husband's estate, had an interest in the affairs of the third respondent only to the extent of protecting her late husband's shares. As such, she had no authority to institute proceedings on behalf of the company. The applicant had also failed to allege the fundamental requirements of a derivative action.

20. The respondents also averred that their appointments were regular and in terms of the law. They explained the third respondent as a purely family business entity as evidenced by the original shareholders and directors. The original shareholders were the late Isidore Nyamusamba, the respondents' father, Evelyn Nyamusamba their late mother and their late brothers Francis Michael and Christopher. This explained why the applicant's late husband took over the affairs of the third respondent following the death of Isidore Nyamusamba.

21. The third respondent owned several immovable properties in Rusape which had been held and used as family properties, even when the applicant's husband was managing the affairs of the third respondent. The late Michael Gwinyai Nyamusamba clearly understood that he was acting on behalf of the broader Nyamusamba family and that all the children of the late Isidore Nyamusamba were expected to benefit from the third respondent.

22. The respondents were uncertain how the late Michael Nyamusamba came to neglect the affairs of the third respondent from 2004 to the extent that he failed to submit the mandatory tax returns to the tax authorities. As a result, the third respondent became redundant from 2004 whilst it had assets. When the respondents became aware that the third respondent was no longer in good standing at law, they resolved to correct the anomaly as Michael Gwinyai Nyamutsamba had passed on. They engaged the Master of the High Court who advised that the estate of the founder, the late Isidore Nyamusamba be registered first. The first respondent was thereafter duly appointed executor of that estate, and she moved on to regularise the affairs of the third respondent.

23. Since the third respondent was a family business, several family meetings were held at which the applicant was invited, and she attended some of the meetings. The applicant

initially cooperated but later opted out of the family discussions and meetings. The respondents accused the applicant and her children of forming their own company and registering it as Nyamusamba Group.

24. The family resolved to restore the position of the third respondent as a good and compliant entity, and they paid all the outstanding dues and submitted outstanding returns dating back to 2004. The family also resolved to appoint new directors and to reconfigure the shareholding of the company. The respondents accused the applicant of refusing to participate in these processes. A resolution to save the third respondent and place it in good standing was indeed passed.

25. As the directors of the third respondent, it was their mandate to protect its interest as it owned some immovable properties. It was their duty to ensure that the immovable properties owned by the third respondent were utilised to advance its interests. It was also their mandate as directors to ensure that tenants occupying the third respondent's immovable properties were paying their rentals and that those who were set to benefit from the third respondent's existence would not be prejudiced in keeping with the vision of their late father Isidore Nyamusamba.

26. The respondents averred that their appointment as directors was above board and accused the applicant of attempting to dishonestly benefit from the third respondent, which was unacceptable and against the values of the third respondent's founder. The respondents maintained that all actions taken on behalf of the third respondent were intended to enhance its interests only and to ensure that their father's vision and legacy was preserved.

Submissions and analysis of the preliminary points

Whether the applicant had authority to institute proceedings

27. Mr *Ndlovu* for the respondents submitted that the application was incompetent because the applicant did not have authority to sue on matters involving the third respondent. Counsel contended that the derivative action granted authority to a director of a company whose affairs were at risk, to approach the court on behalf of the company. A shareholder could also so for and on behalf of the company. It was further submitted that the company ought to have been the applicant in the present application. The applicant had sued the third respondent when in fact the third respondent ought to have been the applicant.

28. In response, Mr *Maeresera*, for the applicant submitted that the preliminary point was devoid of merit and ought to be dismissed. On whether a derivative action had been properly pleaded so as to clothe the applicant with authority to institute the present application, counsel referred to the case of *Sibanda v Betack Fashions (Private) Limited & Ors*[1], wherein it was held that an executor of a deceased shareholder's estate had an interest to make an application such as the present one.

29. Mr *Maeresera* submitted that, in the *Sibanda* case, the applicant was not representing the company, but she wanted the directorship of the company to be regularised. The company was cited as a respondent, as was the position in the present case.

30. Counsel also submitted that there was no need for the applicant to plead a case for a derivative action because the application was not for one. With reference to s 61(1) and (2) of the Companies and Other Business Entities Act[2] (the COBE), Mr *Maeresera* argued that the provision was inapplicable to the present matter because the company was not the applicant. The matter before the court was a direct action by the applicant in her capacity as the Executrix Dative of Estate Late Michael Gwinyai Nyamusamba, in terms of s 60 of the COBE.

31. It is trite that a company is a separate legal persona and must, as a general rule, institute proceedings in its name to vindicate its rights. This principle was classically articulated in *Foss v Harbottle*[3]. See *Minister of Mines and Mining Development & Ors v Grandwell Holdings (Private) Limited*[4]. The respondents challenged the applicant's right to institute the present application on behalf of the third respondent, a company which in terms of the law was entitled to enforce its own rights. The respondents argued that only the company itself could institute proceedings of this nature and that, to the extent that that the applicant relied on a derivative action, she had failed to satisfy the requirements thereof. Mr *Ndlovu* submitted that the company ought to have been cited as the applicant.

32. Per *contra*, Mr *Maeresera* argued that an executor of a shareholder's estate had a right to make an application of this nature to the extent of protecting the interests of the deceased shareholder in that company. He placed reliance on the *Sibanda* case, wherein it was accepted that an executor of a deceased shareholder's estate had sufficient legal interest

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[1] HH 305/17
[2] [*Chapter 24:31*]
[3] (1843) 67 ER 189
[4] SC 34/18

to approach the court in matters affecting the company in which the deceased held shares.

33. The applicant approached this court in her capacity as the executrix dative of the estate of the late Michael Gwinyai Nyamusamba, who, on the papers, was the majority shareholder in the third respondent at the time of his death. Upon his death, those shares vested in his estate, under the administration of the applicant. In my view, the starting point is to determine the nature of the relief sought. The applicant does not purport to act as a representative of the company. Rather, she challenged the lawfulness of the appointment of the first and second respondents as directors and the validity of decisions purportedly taken by them. The company was cited as a respondent, and not as the applicant.

34. A derivative action is dealt with in s 61 of the COBE, as follows.

> **"61. Derivative actions by members on entity's behalf**
>
> "(1) A member or shareholder of a company or private business corporation may bring an action in court in such person's name and on the company's behalf against any manager, officer or director referred to in sections 54 or 55 to enforce, or to recover from that manager, officer or director damages caused to the company by violation of, duties owed by that manager, officer or director to the company under this Act or any other law including laws against fraud or misappropriation.
> (2) Such an action may be brought by one person in the person's own name and on the company's or corporation's behalf or by two or more persons in their names acting together on the company's or corporation's behalf.
> (3) ……."

35. It is clear from a reading of s 61, that a derivative action may be instituted by the aggrieved member in their own name as well as on behalf of the company in its name. In *L Piras & Son (Pvt) Ltd & Another Intervening* v *Piras*[5] the court discussed the principle of a derivative action as follows:

> "The derivative action is an exception to the rule in *Foss v Harbottle* (1843) 67 ER 189 and was expounded thus by Lord Denning MR in Wallersteiner.
> It is a fundamental principle of our law that a company is a legal person, with its own corporate identity, separate and distinct from the directors or shareholders, and with its own property rights and interests to which alone it is entitled. If it is defrauded by a wrongdoer, the company itself is the one person to sue for the damage. Such is the rule in *Foss v Harbottle*. The rule is easy enough to apply when the company is defrauded by outsiders. The company itself is the only person who can sue. Likewise, when it is defrauded by insiders of a minor kind, once again the company is the only person who can sue. But suppose it is defrauded by insiders who control its affairs — by directors who hold a majority of the shares — who then can sue for damages? Those directors are themselves the wrongdoers. If a board meeting is held, they will not authorise proceedings to be taken by the company against themselves. If a general meeting is

[5] 1993 (2) ZLR 245 (SC)

> called, they will vote down any suggestion that the company should sue them themselves. Yet the company is the one person who is damnified. It is the one person who should sue. In one way or another, some means must be found for the company to sue."

36. The views expressed by the court in the above authority are apposite. But as has already been observed, the applicant approached the court as the executrix dative of the estate of the late Michael Gwinyai Nyamusamba. The estate had an interest in the third respondent to the extent of the shareholding held by the late Michael Gwinyai Nyamusamba in the company. In the *Sibanda* case, the court made the following pertinent observations:

> "The person who is ceased with the administration of the estate has a duty to protect the assets of the estate. That gives the executor in this matter sufficient interest to enforce a legal right. Clearly, the executor dative has a direct and substantial interest in the matter. An executor has a duty to submit to the Master an inventory of the assets of the estate and maintain the property until it can be distributed to the heirs or sold. The executor must be sure to find all personal property in the estate and protect it until distribution. These duties give the executor sufficient interest to sue as was done by the applicant in the present matter.
>
> The case of *L Piras* that Mr. *Tandi* cited is distinguishable from the present case. In the present matter the executor who represents the shareholder is not suing on behalf of the fourth respondent in order to protect its property. He is actually suing the fourth respondent as a respondent in a bid to protect the interests of the beneficiaries of the late John Nyamasoka. The executor dative is trying to protect the shares of the beneficiaries because if the property of the company from which they are supposed to benefit is disposed of they stand to be prejudiced….."

37. The principle that arises from the *Sibanda* case is apposite to the present matter. An applicant representing the interests of a deceased shareholder does not necessarily have to assert such rights through a derivative action. The applicant is not seeking to assert the rights of the company through this suit. Instead, she was seeking to protect the interests of the estate to the extent of the shareholding held by her late husband in the third respondent.

38. It is for the above reasons that the court agreed with the submissions made by the applicant's counsel that the applicant did not need to institute proceedings through a derivative action or make the company a co-applicant. The preliminary point is dismissed for lack of merit.

Disputes of Fact

39. It was submitted that the application was afflicted by disputes of fact which made the application unresolvable on the papers. The issues concerning how the estates of the late shareholders viewed the present litigation and the new corporate structure of the third respondent were unclear. There was also the issue of whether the family meetings

resolved to reconstitute the third respondent and appoint the respondents as shareholders and directors needed to be clarified through oral evidence. There was also the related issue of whether the requisite legal provisions were complied with by the respondents.

40. Mr *Ndlovu* submitted that the respondents' contention was that the applicant's husband acquired his shares fraudulently. At the time that Isidore and Evelyn Nyamusamba passed on, they were both holding shares in the third respondent, and their estates were yet to be registered. Their shares were now being held by Michael Nyamusamba. The question that remained unresolved was how Michael acquired Isidore and Evelyn Nyamusamba's shares. The court could not be seen to be abating a crime.

41. In reply, Mr *Maeresera* dismissed the submission on the alleged disputes of fact. He submitted that the issues before the court were straightforward. The central issues were whether the respondents were properly appointed in terms of Articles 24 or 32 of the company's Articles of Association, and whether such appointments were made at an Annual General Meeting. Counsel also submitted that the respondents were never appointed directors of the third respondent in terms of the company's Articles of Association. It was also submitted there was never a shareholders general meeting at which the first and second respondents were appointed.

42. Mr *Maeresera* also questioned why the shares were recalled if they were the product of a fraudulent process. According to counsel, the respondents' submission that there were family gatherings were a resolution was passed to appoint them as directors was without merit. No resolutions and minutes were attached to confirm such appointment. Counsel also submitted that while the first respondent was a sister to the applicant's late husband and an executor of the estate of the late Isidore Nyamusamba, she was never appointed as a director or shareholder of the company.

43. The test for determining whether there exist material disputes of fact was set out in *Supa Plant Investments (Pvt) Limited* v *Edgar Chidavaenzi*[6] of the judgment, where MAKARAU J (as she then was) stated:

> "A material dispute of fact arises when such material facts put by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence."

[6] HH 92/09 at p 4

44. In motion proceedings, affidavits serve as pleadings as well as the vehicle through which evidence is placed before the court. The dispute must be capable of resolution on the papers based on the evidence placed before the court through the affidavits, as well as the legal and factual contentions made through oral submissions and heads of argument. The court must, by balancing the probabilities based on the evidence presented by both parties, be able to resolve the dispute based on the more credible version.

45. The materiality of the disputes of fact must be considered in the context of the relief sought by the applicant. The question being whether on the facts as presented before it, the court can, on a balance of probabilities competently grant the relief sought. The applicant sought a declaration of nullity and the setting aside of the appointment of the respondents as directors of the third respondent. Also sought was the cancellation of the Form CR 6 issued on 24 March 2023 in which the respondents were appointed as directors of the third respondent.

46. The applicant argued that the respondents were not appointed by the shareholders of the third respondent. They were also not appointed in terms of the third respondent's Memorandum and Articles of Association. The applicant also petitioned the court to declare null and void and set aside the special resolution passed on 2 January 2024 authorising the third respondent to buy back one thousand seven hundred and fifty sic (1 756) shares held by Michael Gwinyai Nyamushamba, Isidore Nyamusamba, Francis Nyamusamba, Christopher Nyamusamba and Evelyn Nyamusamba. The applicant also wished to have the transfer of those shares to the capital reserve fund declared null and void and set aside.

47. It is common cause that the applicant's interest in the affairs of the third respondent was only to the extent of her late husband's shareholding. Her late husband was not the only shareholder in the third respondent. The applicant's main complaint and the relief sought was predicated on the averment that the appointment of the respondents as directors of the third respondent was irregular. Resultantly, the decisions made on behalf of the third respondent were also irregular. This is where the applicant's problems started.

48. The applicant did not state which shareholders ought to have appointed the directors of the third respondent. The applicant also alluded to the shares of the deceased shareholders as having been irregularly dealt with by the respondents. Apart from

Michael Gwinyai Nyamutsamba, the other deceased shareholders were Isidore Nyamusamba, Francis Nyamusamba, and Evelyn Nyamusamba.

49. In her own words, the applicant acknowledged that the deceased shareholders passed on while they were still office bearers of the third respondent. Responding to the preliminary objection on the non-joinder of the estates of the deceased shareholders, the applicant said the following in her answering affidavit:

> "….It should also be noted that the estates of the of the late Evelyn Nyamusamba and Francis Nyamusamba have not been registered so there is no one to represent those estates….."[7]

50. The estates of the deceased shareholders of the third respondent, who had an interest in the third respondent, were therefore not cited as parties in these proceedings. The first respondent was appointed as the executrix dative in the estate of the late Isidore Nyamusamba. She was however cited in the present proceedings in her personal capacity and not as a representative of the estate of the late Isidore Nyamusamba. The estate of the late Isidore Nyamusamba is not represented in these proceedings.

51. The non joinder of the estates of the late shareholders was raised as a preliminary point on its own. Be that as it may, the non joinder of the said shareholders also had a bearing on the disposal of the preliminary point of the existence of disputes of fact. The applicant sought relief which had a bearing on the estates of the deceased shareholders who are not before the court. Their version of events concerning the appointment of the respondents as directors of the third respondent was critical.

52. The status of the respondents in the third respondent cannot be resolved without hearing from the representatives of the estates of the deceased shareholders. I say so for the following reasons. As already observed, in her founding affidavit, the applicant merely stated that the respondents were not appointed as directors by the shareholders of the third respondent. The applicant does not identify the shareholders whose responsibility it was to appoint directors.

53. In their opposing affidavits, the respondents accused the late Michael Gwinyai Nyamusamba (whose estate the applicant was representing), of unilaterally allocating himself the majority shares in the third respondent without following the Articles of Association or the COBE. The allocation was done at a time when Isidore

[7] See para 4 page 109 of the answering affidavit

Nyamusamba had passed away. No resolution of the third respondent was attached to show how the applicant's husband processed the majority share allocation to himself.

54. Questions that immediately arise are whether: the late Michael Gwinyai Nyamusamba was a legitimate shareholder in the third respondent? how many shares did he hold in the third respondent and what was the status of the shareholding in the third respondent currently. Who exactly appointed the respondents to the directorship of the third respondent and how was the appointment done? What is the position regarding the shareholding of the other deceased shareholders and what was their attitude to the appointment of the respondents as directors of the third respondent.

55. The papers before me present a complex labyrinth of conflicting versions which require further elucidation through *viva voce* evidence. The evidence placed before the court in the parties' respective affidavits leaves the court in no better position to resolve the dispute between the parties without hearing further evidence.

56. The affairs of the third respondent were not reposed in the applicant alone as the representative of a deceased shareholder. The applicant's version of events was inconclusive when juxtaposed against the respondents' rebuttal. The applicant's complaint can only be fully ventilated through oral evidence.

57. It is for the foregoing reasons that the court determined that there was merit in the preliminary point concerning the existence of material disputes of fact. Having made that finding, it became unnecessary for the court to relate to the remaining preliminary points and the merits of the matter.

Costs

58. The dispute arises from a family setting. The third respondent is a family company. The principal actors are related in one way or the other. It is a matter that with proper legal counsel the parties must be able to resolve amicably. For that reason and in the exercise of my discretion, I refrain from making an adverse order of costs.

Resultantly it is ordered that:

1. The application is hereby struck off the roll for being improperly before the court, it being afflicted by material disputes of fact.
2. Each party shall bear its own costs of suit.

MUSITHU J: ……

Chizengeya Maeresera and Partners, applicant's legal practitioners
Gonese & Ndlovu, 1st and 2nd respondents' legal practitioners